

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 HOUSE BILL NO. 2293

By: Hilbert of the House

and

6 Seifried of the Senate

7
8
9 COMMITTEE SUBSTITUTE

10 An Act relating to the Oklahoma Broadband Office;
11 amending Section 3, Chapter 229, O.S.L. 2022 (74 O.S.
12 Supp. 2025, Section 9202), which relates to the
13 Broadband Governing Board; modifying date of
14 termination of Board; updating statutory reference;
15 amending 17 O.S. 2021, Section 139.202, as amended by
16 Section 4, Chapter 229, O.S.L. 2022, and as
17 renumbered by Section 13, Chapter 229, O.S.L. 2022
18 (74 O.S. Supp. 2025, Section 9203), which relates to
19 the Broadband Expansion Council; modifying date of
20 termination of Council; amending Section 5, Chapter
21 229, O.S.L. 2022, as amended by Section 1, Chapter
22 336, O.S.L. 2023 (74 O.S. Supp. 2025, Section 9204),
23 which relates to the Oklahoma Broadband Office;
24 modifying date of termination of Office; amending
Section 6, Chapter 229, O.S.L. 2022 (74 O.S. Supp.
2025, Section 9205), which relates to duties and
authority of the Oklahoma Broadband Office; modifying
date of certain goal; directing the Oklahoma
Broadband Office to create certain plan; requiring
plan to include certain information; providing
procedures for approval of certain plan; providing
contingent termination dates; providing for
codification; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY Section 3, Chapter 229, O.S.L.
3 2022 (74 O.S. Supp. 2025, Section 9202), is amended to read as
4 follows:

5 Section 9202. A. 1. There is hereby created, until June 30,
6 2028 terminated pursuant to the procedures provided in Section 5 of
7 this act, the Broadband Governing Board. The Board shall oversee
8 the Oklahoma Broadband Office. ~~Effective June 30, 2028~~ Pursuant to
9 the procedures provided in Section 5 of this act, the Board shall
10 terminate. The Board shall utilize the year prior to the
11 termination date for the purpose of ceasing the Board's affairs.

12 2. The Board shall receive regular reports from the Office's
13 Executive Director and the Executive Director's staff on the status
14 of the Statewide Broadband Plan, the State Broadband Grant Program,
15 other developed grant programs, and other projects the Office is
16 undertaking, during regularly scheduled meetings.

17 B. The Board shall consist of nine (9) members. Two members
18 shall be appointed by the Speaker of the Oklahoma House of
19 Representatives, two members shall be appointed by the President Pro
20 Tempore of the Oklahoma State Senate, three members shall be
21 appointed by the Governor, one member shall be the Lieutenant
22 Governor, and one member shall be the State Treasurer. Except as
23 provided in subsection C of this section, appointees shall serve
24 until ~~June 30, 2028~~ the termination of the Board as provided in

1 Section 5 of this act. No individual with an official affiliation,
2 paid or unpaid, with any potential recipient of a grant administered
3 under the provisions of this act, shall be appointed to or serve on
4 the Board.

5 C. Each appointee shall serve at the pleasure of his or her
6 appointing authority and may be removed or replaced without cause.

7 D. 1. The Board shall hold an organizational meeting not later
8 than thirty (30) days from the effective date of this act. At such
9 meeting, the Board shall adopt qualifications and a salary range for
10 an Executive Director for the Oklahoma Broadband Office based on the
11 recommendations of the Human Capital Management Division of the
12 Office of Management and Enterprise Services, and provide for the
13 process of filling the position in a reasonable time in accordance
14 with the laws of this state.

15 2. The Board shall hold meetings as necessary at a place and
16 time to be fixed by the Board. The Board shall elect, at its first
17 meeting, one of its members to serve as chair and another of its
18 members to serve as vice-chair. At the first meeting in each
19 calendar year thereafter, the chair and vice-chair for the ensuing
20 year shall be elected. Special meetings may be called by the chair
21 or by five members of the Board by delivery of written notice to
22 each member of the Board. A majority of members serving on the
23 Board shall constitute a quorum of the Board.

1 E. If a Board member is unable to fulfill his or her term for
2 any reason, the appointing authority of such member may appoint a
3 replacement to complete the remainder of the term.

4 F. The Board shall be subject to the Oklahoma Open Meeting Act
5 and the Oklahoma Open Records Act.

6 G. The Board shall employ, evaluate, and maintain an Executive
7 Director of the Office who shall serve at the pleasure of the Board
8 and may be removed or replaced without cause.

9 H. The Board shall promulgate rules as necessary to implement
10 the provisions of the Oklahoma Broadband Expansion Act and for the
11 governance and operation of the Oklahoma Broadband Office.

12 I. The Board shall approve or disapprove all grant and
13 incentive programs created by the Office under the provisions of
14 this act or under law.

15 J. The Board shall oversee the annual budget for the Office,
16 which shall be funded from the allowed administrative expenses of
17 applicable federal programs and funds available for expenditure from
18 the State Broadband Grant Program Revolving Fund created pursuant to
19 ~~Section 10 of this act~~ 9209 of this title.

20 K. The Board shall approve the Statewide Broadband Plan and
21 updates to the Plan as necessary.

22 L. The Board shall utilize the legal services of the Attorney
23 General for all legal matters and representation.
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1 SECTION 2. AMENDATORY 17 O.S. 2021, Section 139.202, as
2 amended by Section 4, Chapter 229, O.S.L. 2022, and as renumbered by
3 Section 13, Chapter 229, O.S.L. 2022 (74 O.S. Supp. 2025, Section
4 9203), is amended to read as follows:

5 Section 9203. A. There is hereby created, until terminated
6 pursuant to the procedures of Section 5 of this act ~~June 30, 2028~~,
7 the Broadband Expansion Council. ~~Effective June 30, 2028~~ Pursuant
8 to the procedures provided in Section 5 of this act, the Council
9 shall terminate. The Council shall utilize the year prior to the
10 termination date for the purpose of ceasing the Council's affairs.

11 B. The Council shall consist of fourteen (14) persons to be
12 selected as follows:

13 1. Three members shall be appointed by the Governor, one of
14 whom shall be the individual serving as the Executive Director of
15 the Oklahoma Broadband Office, one of whom shall be a current or
16 past mayor of a municipality having a population of less than
17 thirty-five thousand (35,000) persons according to the latest
18 Federal Decennial Census or most recent population estimate and
19 which is not part of either the Oklahoma City or Tulsa Metropolitan
20 Statistical Areas, and one of whom shall be a resident of this state
21 and a wireless Internet service provider (WISP);

22 2. Five members shall be appointed by the Speaker of the
23 Oklahoma House of Representatives, one of whom shall represent the
24 interests of rural Internet service providers, one of whom shall be

1 a private sector technology professional with expertise in broadband
2 connectivity, access, price and related economic factors, one of
3 whom shall represent the interests of rural health care, one of whom
4 shall be a representative of a wireless telecommunications provider
5 not affiliated with an incumbent local exchange carrier in Oklahoma
6 and one who shall be a representative of a wireless
7 telecommunications provider with operations in Oklahoma and at least
8 twenty-four other states;

9 3. Five members shall be appointed by the President Pro Tempore
10 of the Oklahoma State Senate, one of whom shall be a professional
11 having academic expertise in large-scale information technology
12 infrastructure with emphasis on rural broadband access, one of whom
13 shall represent the interests of rural business enterprises, one of
14 whom shall be a citizen from a community of less than fifty thousand
15 (50,000) persons which is not part of either the Oklahoma City or
16 Tulsa Metropolitan Statistical Areas, one of whom shall be a rural
17 electric cooperative representative and one who shall be an Oklahoma
18 resident and Tribal Leader of a tribe recognized in this state; and

19 4. One nonvoting member to be selected by the Oklahoma
20 Corporation Commission who has expertise in administration of the
21 Universal Service Fund, but who is not an elected member of the
22 Commission.

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1 C. A quorum of the membership of the Council shall be necessary
2 in order to take any final action pursuant to the provisions of this
3 act.

4 D. The Council shall be subject to the Oklahoma Open Meeting
5 Act and the Oklahoma Open Records Act.

6 E. The Council shall serve as the advisory board to the
7 Oklahoma Broadband Office.

8 F. The Council shall advise the Office in developing and
9 continually monitoring the Office's Plan related to:

10 1. Identifying geographic areas to be utilized in developing
11 the Office's policies for establishing or improving broadband access
12 in the state pursuant to the Oklahoma Broadband Expansion Act;

13 2. Assessing the financial viability of broadband service
14 providers so that a broadband network is adequately supported in its
15 operations, that needed repairs and upgrades can be undertaken on a
16 timely basis and that the goal of having a quality long-term
17 broadband service delivery system across the state is achieved and
18 maintained;

19 3. Maintaining the viability of the Oklahoma Universal Service
20 Fund and give consideration to whether similar universal funds
21 should be implemented in order to facilitate broadband expansion and
22 operational costs for underserved areas; and

23 4. Preventing duplication of facilities and investment when the
24 Office makes grant recommendations. With the input of the Council,

1 the Oklahoma Broadband Office shall establish objective standards in
2 order to determine whether the construction of broadband access
3 constitutes duplication of facilities and investment and also the
4 role of any recommended incentives that would benefit entities in
5 the private sector so that public resources are effectively utilized
6 and that duplication of efforts is avoided.

7 G. The Council shall receive administrative support from the
8 Oklahoma Broadband Office.

9 SECTION 3. AMENDATORY Section 5, Chapter 229, O.S.L.
10 2022, as amended by Section 1, Chapter 336, O.S.L. 2023 (74 O.S.
11 Supp. 2025, Section 9204), is amended to read as follows:

12 Section 9204. A. There is hereby created, until June 30, 2028
13 terminated pursuant to the procedures provided in Section 5 of this
14 act, the Oklahoma Broadband Office, to serve as the state's sole
15 administrator of the functions, powers, and duties assigned to the
16 Office in the Oklahoma Broadband Expansion Act or under law.
17 ~~Effective June 30, 2028~~ Pursuant to the procedures provided in
18 Section 5 of this act, the Office shall terminate and all personnel
19 positions shall be abolished. The Office shall utilize the year
20 prior to the termination date for the purpose of ceasing the
21 Office's affairs.

22 B. The Office shall receive administrative assistance from the
23 Office of Management and Enterprise Services (OMES), which shall
24 provide, through existing OMES resources, administrative assistance

1 upon request in writing or electronic correspondence from the
2 Office's Executive Director. OMES shall provide assistance in the
3 manner requested within thirty (30) days of determination by the
4 Agency that the request is able to be fulfilled. If for any reason
5 the request cannot be fulfilled within thirty (30) days, the Office
6 and OMES shall enter into a written agreement expressing an agreed
7 upon timeline for fulfilling the needs of the Office. In the event
8 that the request cannot be fulfilled, OMES shall respond in writing
9 within ten (10) days of the request providing the reasoning for
10 denial. If the request cannot be fulfilled utilizing existing
11 resources, OMES may charge the Office for the actual cost to fulfill
12 the request.

13 C. The Office shall be governed by the Broadband Governing
14 Board, created pursuant to Section 9202 of this title.

15 D. The Office shall be advised by the Broadband Expansion
16 Council, created pursuant to Section 9203 of this title.

17 E. The Office shall have an Executive Director who shall
18 oversee the operations of the Office including, but not limited to:

19 1. Overseeing the creation, maintenance, and completion of the
20 Statewide Broadband Plan;

21 2. Communicating the state's progress in achieving the goals
22 and implementation of the Statewide Broadband Plan;

23 3. The creation, housing, and updating of a statewide broadband
24 services map;

1 4. Overseeing of grant applications and awards for connectivity
2 and affordability projects;

3 5. Making recommendations to the Board regarding procedural and
4 administrative rules for the Office; and

5 6. Employment and management of Office staff subject to the
6 limitations and requirements of the Oklahoma Broadband Expansion Act
7 and subject to the limitations and requirements of the Broadband
8 Governing Board.

9 F. The Executive Director shall regularly report to the Council
10 and the Board and shall submit an annual report to the Office of the
11 Speaker of the House of Representatives and the Office of the
12 President Pro Tempore of the Senate.

13 G. The Office ~~may hire~~ shall utilize the legal services of the
14 Attorney General for all legal matters and representation. The
15 Office shall not employ or retain in-house legal counsel as it is
16 ~~deemed necessary by the hiring entity.~~ The Office shall be subject
17 to the provisions of Section 20i of this title.

18 SECTION 4. AMENDATORY Section 6, Chapter 229, O.S.L.
19 2022 (74 O.S. Supp. 2025, Section 9205), is amended to read as
20 follows:

21 Section 9205. A. The Oklahoma Broadband Office shall:

22 1. Conduct a study of and continually monitor broadband access
23 in the state to assess:
24

- a. existing capabilities to access broadband telecommunication services,
- b. the costs of obtaining broadband services from existing providers,
- c. the estimated cost to improve broadband access, and
- d. the likelihood of changes in broadband access in the near and intermediate future based on available information regarding public and private programs to enhance access and adoption; and

2. Maintain, update, and execute the Statewide Broadband Plan as necessary.

B. The Office shall incorporate the information as described in subsection A of this section into a mapping system that depicts resources, broadband coverage, connectivity speeds, and other such features as the Office deems relevant. The Office may also purchase data sets it deems necessary to complete such mapping system.

C. The Office shall establish policies and regulations as may be necessary to implement the provisions of this act.

D. The Office shall establish policy as needed to implement a process whereby impacted parties may challenge or protest data and information published on the Office's mapping system. The process shall include, but not be limited to, features that:

1. Are heard and ruled on at the Office level;

1 2. Provide for a ruling by the Office within sixty (60) days of
2 the submitted challenge or protest; and

3 3. Upon successful protest action, result in a timely
4 correction of the map.

5 E. The Office shall perform and maintain a study of existing
6 grants, incentives, and programs that may improve physical access to
7 broadband along with adoption of broadband technologies. The
8 grants, incentives, and programs may include federal funds, state
9 funds or resources, tribal funds or resources, donated funds, or
10 funding available from foundations, endowments or similar resources,
11 state or local tax incentives, state or local financing incentives
12 or options, or federal, tribal, state or local regulatory policies
13 that would be conducive to improving existing broadband access or
14 establishing access where it does not currently exist. The Office
15 shall regularly report on the currently available grants,
16 incentives, and programs and how best to utilize each.

17 F. The Office shall create, and update no less than biannually,
18 a Statewide Broadband Plan. The Plan shall detail what areas are
19 served, underserved, or unserved according to the prevailing
20 definitions of the FCC, and how best to improve the infrastructure
21 and connectivity in underserved and unserved areas. The Plan shall
22 include, but shall not be limited to, detailing a pathway for
23 ninety-five percent (95%) of the state's population to be adequately
24 served ~~by June 30, 2028~~ by broadband.

1 G. The Office shall create the Capital Projects Fund Grant
2 Report or provide the necessary information to the state entity
3 drafting the Report. The Report shall be submitted to the
4 Department of the Treasury no later than September 24, 2022. The
5 Office shall maintain the Report and submit any and all additional
6 information as required. The Office shall work with the Joint
7 Committee to ensure all approved broadband projects utilizing funds
8 from the Capital Projects Fund follow the correct reporting
9 requirements based on Department of Treasury guidance.

10 H. Additionally, the Office is authorized to seek, apply for,
11 and administer funding through grant opportunities. The Office is
12 also authorized to administer grant funding awards to recipients and
13 subrecipients.

14 I. On or before October 31, 2022, the Office, with the advice
15 of the Council, shall develop a set of broadband grants or incentive
16 awards guidelines to be approved by the Board. The grants and
17 incentive awards shall be for unserved and underserved areas. The
18 Office shall submit a copy of the guidelines to the Office of the
19 Speaker of the Oklahoma House of Representatives, the Office of the
20 President Pro Tempore of the Oklahoma State Senate, and to the
21 offices of the chairs of the appropriate legislative committees.
22 The guidelines shall:

23 1. Consider a weighted approach for awards based upon the
24 following:

- a. the area's need for services, including, but not limited to, whether the area is underserved or unserved,
- b. whether there are existing broadband assets in the area, based on the statewide map,
- c. whether existing federal, state, local, tribal, or private resources have been allocated to broadband services in the area,
- d. a preference for federal, state, local, tribal, or private partnerships, and
- e. the capacity of the provider to maintain assets for an extended period of time;

2. Recommend any necessary controls including, but not limited to, capping the dollar amount of awards, allowing for an auditing process, and a process that allows for award clawbacks. These controls shall be in place to ensure the maximum efficiency of the incentive award and to protect against waste, fraud, or abuse; and

3. Include annual reporting requirements of award recipients to assess effectiveness of such incentives which shall include, but not be limited to, changes in coverage resulting from implementing awarded grants and incentives.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 9211 of Title 74, unless there is created a duplication in numbering, reads as follows:

1 A. No later than December 31, 2026, the Oklahoma Broadband
2 Office shall develop a comprehensive plan for the termination of the
3 Broadband Governing Board, the Oklahoma Broadband Office, and the
4 Broadband Expansion Council. The termination plan shall:

5 1. Describe the orderly termination of the Office through its
6 termination date with clear milestones;

7 2. Establish a roadmap and measurable metrics to evaluate
8 progress;

9 3. Include detailed staffing information including:

10 a. all current staff positions,

11 b. job descriptions,

12 c. base salary,

13 d. fringe benefits,

14 e. total compensation and cost per employee, and

15 f. the staffing needs through the termination process;

16 4. Provide an estimate of the total cost of relevant operations
17 and projects to the state if federal funds are eliminated; and

18 5. Provide a detailed accounting of broadband funds awarded to
19 and expended by the Board and Office.

20 B. The Board shall review and approve or reject the termination
21 plan. Upon approval by the Board, the termination plan shall be
22 submitted to the Governor, the President Pro Tempore of the Senate,
23 and the Speaker of the House of Representatives. The Joint
24 Committee on Pandemic Relief Funding or successor committees jointly

1 designated by the President Pro Tempore of the Senate and Speaker of
2 the House of Representatives shall approve or reject the plan no
3 later than May 28, 2027. If the termination plan is approved by the
4 Joint Committee, the termination date of the Board, Office, and
5 Council shall be December 31, 2030; if the termination plan is
6 rejected, the termination date shall be June 30, 2028.

7 SECTION 6. This act shall become effective November 1, 2026.

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